STEPHEN RAZO
versus
SOLOMON GABAZA N.O
and
MUNETSI CHITONGO N.O
and
RUSAPE TOWN COUNCIL

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE; 4 June 2026

Opposed Application

N Mangoi with O Mahube, for the applicant
S Dizwani with L Manyika, for the respondents

Introduction

WAMAMBO J: This is an application for contempt of Court. The applicant is a former employee of the third respondent.

The first respondent is third respondent's town secretary while second respondent is third respondent's housing director.

Applicant's employment with third respondent was terminated. Pursuant thereto applicant approached the Arbitrator for a resolution. The Arbitrator rendered an award on 22 September 2017.

The award as granted in favour of the applicant is couched in the main as follows:

> "1. That respondent pay Mr Stephen Razo at (sic) total of USD 35564.65.
> 2. That respondent give Mr Razo a stand of the same size with his previously allocated stand that is stand no NE 3061 Vengere Township:"

The applicant registered the award as an order of the High Court on 27 August 2019 under HCH 6011/19. The order granted by the High Court in HCH 6011/19 reads as follows:

"1. Application for registration of arbitral award be and is hereby granted.
2. Respondent to pay to the applicants a total of (USD53592.29) fifty three thousand five hundred and ninety two United States Dollars and twenty nine cents.
3. Respondent to pay the costs of suit."

An attempt was made by third respondent to permanently stay a writ of execution under HCH 6011/19 and it was not successful.

The damages as reflected in the Arbitrator's award as registered as a Court order have been paid in full.

What has not been compiled with is the awarding of a stand. This forms the nub of the matter. The refusal by third respondent to award a stand to the applicant has prompted this application.

Applicant seek an order of contempt of court against the respondents on account of their not adhering to an Order of Court. The above reflects the summarised version of applicant's application.

The application is opposed by the respondents.

An opposing affidavit was filed by the third respondent. The deponent to that affidavit is the first respondent.

The respondent raised the points in limine namely incompetent relief, estoppel and that the judgment has superannuated. I will deal with these points *in limine* first.

The respondents submitted that there is no order against the first and second respondents and that renders the relief sought by applicant incompetent. The applicant submitted that s 136(2) of the Urban Council Act places an obligation of the Town Clerk to administer and manager a town, in this case that responsibility on behalf of third respondent is placed on the first respondent.

It is clear to me that a city council does not run its own affairs as a city council. It is represented by its officers, directors and the town clerk. Clearly, in this case it is indeed the first and second respondents. The first respondent, the town clerk who filed the opposing affidavit on behalf of the third respondent and the housing director of the third respondent.

In *Zellco Cellular (Pvt) Ltd* versus *Netone Cellular (Pvt) Ltd and two others* HH 32/2012 at p 8 GUVAVA J (as she then was) said;

> "A corporation can only comply with a court order through its officers. thus, it can be convicted of contempt of court if its officers have refused or neglected to comply with the court order. A person who also contributes to the commission of the office can without being a principal be punishable as an accomplice. Consequently, a director who has knowledge of the order and causes the company to refuse to obey the order is guilty of contempt."

The town clerk and housing director are clearly the arms of the third respondent responsible for adhering or disobeying a court order. In the circumstances I find the first point in limine without merit and I dismiss it.

The second point *in limine* raised is estoppel. Respondents submit on estoppel as follows:-

By conduct applicant only sought the registration of an order on the monetary aspect and the order speaks only to that.

By conduct applicant led respondents to believe that he had abandoned the claim on the stand. Reference is also made to a letter dated 15 January 2025.

The letter was written by applicants' legal practitioners and is couched on the relevant portion as follows:

> "RE: STEPHEN RAZO AND JAMES CHAGWIZA V RUSAPE TOWN COUNCIL HC 6011/19 SMT 365/24
> We refer to the above matter
> Kindly take note that Rusape Town Council has paid the full amount of USD 53592.29 in terms of the Court Order. The remaining legal fees will be pursued using other avenues. You are therefore instructed not to proceed with the execution of the Court Order as instructed. You can proceed to recover your incurred costs from the Council."

Applicant submits that estoppel is not applicable in this case. On the letter dated 15 January 2025 applicant submits that the contents of the letter never confirmed that the claim for the stand had been abandoned. The letter merely confirmed receipt of the payment for the damages.

After a consideration of both parties submissions, I am inclined to agree with applicant's submissions. The letter referred to and relied upon does not address, the issue of the stand at all. The letter is solely for the confirmation of applicant having received the amount of damages, a stop to the execution of the court order as instructed and an indication that costs would be pursued using other avenues.

I find nothing by conduct or otherwise reflecting that applicant had abandoned the claim for the stand. The second point in limine is hereby dismissed.

The third point in limine raised by the respondents is superannuation.

Respondents aver that the portion of the order applicants seeks to reinforce was not part of the court order registered in HCH 6011/19 and that the portion of the order remains superannuated as the three year period has ended. The applicant is clearly of a different view. He submits that after the order under HCH 6011/19 third respondent filed for stay of proceedings which application was dismissed in March 2025. Thus, the court the order could not be enforced. The third respondent was actively complying with what he now describes as a superannuated order.

I am persuaded by applicant's argument in this regard, particularly if regard is had to the case of *Shorai Mavis Nzara and three others* v *Cecilia Kashumba N.O and three others* HH 151/16.

To that end I find that the order of HCH 6011/19 was not superannuated. This point *in limine* is also dismissed.

Applicant in turn raised a single point *in limine*. He avers that the opposing papers are fatally defective. In other words that the stamp for the commissioner of oaths does not identify the office or capacity in which the Commissioner of Oaths administered the oath. In essence applicants' stance is that there are no opposing papers before the Court and the application ought to be treated as unopposed. In respondents are of the view that their that there is nothing irregular about the commissioner of oaths stamp.

In *Mike Mandishayika* v *Maria Sithole* HH 798/15 CHITAKUNYE J (as he then was) at page 2 said the following:

> "An affidavit is a written statement made on oath or other person authorised to administer one. The deponent to the statement must take the oath in the presence of the commissioner of oaths and must append his or her signature to the document in the presence of such commissioner equally the commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously."

An examination of the relevant page 42 of the consolidated record where the deponent and the commissioner of oaths affixed their signatures and dates, is necessary. The deponent and the commissioner of oaths both affixed their signatures. Both affixed the date on which the signatures were affixed which is the same date the 22nd of August 2025. The commissioner of

oaths also affixed his stamp which identifies him as C Musakwa, a commissioner of oaths with an address in Rusape and a cellphone number.

The decisive appellate authority is *Firstell Cellular (Pvt) Ltd* v *Netone Cellular (Pvt) Ltd* 2015(1) ZLR 94(S). The Supreme Court held that in Zimbabwe there is no legislation on this point and that the matter is "governed by practice."

In the present matter the commissioner of oath's stamp contains the name, the physical address the phone numbers and the words "Commissioner of Oaths". The person before whom the deponent swore is thus identifiable. No prejudice has been shown and there is no fact placed before me suggesting that the Commissioner of Oaths was unauthorised or that the oath was not genuinely administered. In the circumstances of this case the affidavit substantially complies with Zimbabwean law and practice. In the circumstances I find that the preliminary point raised by applicant is dismissed. I now deal with the merits of the case.

What appears to be common cause is the following:- That an arbitration award was rendered in favour of the applicant. The same was registered as an order of this Court. The question that lingers and is at the core of this matter is if applicant should be granted the stand as espoused in the arbitration award. Flowing thereform is the order of contempt of court sought against the respondents.

The respondents have not availed the stand sought by the applicant citing that it does not form part of the order granted in confirmation of the arbitration award. It has also been argued that applicant is estopped from seeking the grant of the stand. I have already found that estoppel and the other preliminary points are devoid of merit.

The order as confirmed by the High Court does not explicitly enumerate the granting of the stand to applicant. The order however, clearly and explicitly confirms the arbitration award. It does not enumerate that the issue of the stand has been abandoned. In any case the High Court has no power to amend an arbitration award once it has decided to grant same.

It is important to note that the registration of the arbitration award was not opposed. The Court effectively had no power to amend the same. It is different from the registration of an arbitral award which is opposed where the court has to embark on resolving the matter by a consideration of the requirements for the registration of an arbitral award including whether the award is contrary to public policy.

The arbitral award in this case is extant and was never set aside. An attempt to permanently stay a writ execution met with a dismissal under HCH 770/20. This order appears at page 26 of the consolidated record.

It would appear that this Court has no appeal powers when faced with the registration of an arbitral award.

Although cited in the context of an opposed registration of an arbitral award the following *dicta* by MATHONSI J (as he then was) in *Lourens M- Botha* v *Gwanda Rural District Council* HB 151/18 at page 7 is relevant:

> "In my view the provisions relating to refusal to recognise and enforce an arbitral award must be interpreted narrowly in order to protect the institution of arbitration. After all it is the parties who voluntarily submit to arbitration as a vehicle for a speedy and cost effective method of dispute resolution. They should therefore not lightly be allowed to side-foot the consequences of their choice by raising fanciful defences against registration of awards. The case of *Zesa* v *Maphosa* 1999(2) ZLR 452(S) has always been regarded as the locus classicus on the subject.
> The court stated at 466E-G.
> "Under articles 34 and 36 the court does not exercise an appeal power and either uphold or set aside or decline to recognise and enforce an award by having regard to what it considers should have been the correct decision. Where however, reasoning or conclusion in any award goes beyond mere faultiness or incorrectness and constitutes a palpable inequity that is so far reaching and outrageous in its defiance of logic or acceptable moral standards that a sensible or fair minded person would consider that the conception of justice in Zimbabwe would be intolerably hurt by the award, then it would be contrary to public policy to uphold it. The same consequences applies where the arbitrator has not applied his mind to the question or has totally misunderstood the issue and the resultant injustice reaches the point mentioned above."

Clearly, in this case there was no opposition to the granting of the arbitral award the Court was therefore obligated to register the arbitral award. The argument that the respondent did not flout the order of the Court falls away.

It was argued that the applicant seemingly abandoned the issue of the stand in its quest to register the arbitral award. There is no such proof. As mentioned before the Court made an order that the arbitral award was registered as appears in the order of HCH 6011/19.

The question that has to be asked is what happens to the portion of the arbitral award granting a stand to the applicant. Surely at former employee in his right mind would not abandon the granting of a stand which he has lawfully been granted.

The respondents argue that there is no longer a stand available. That argument is untenable on various fronts including that it can only be through the respondents that the stand

may no longer be available. This is the face of a Court order confirming the arbitral award. In any case the applicant seeks a stand the same size as the one previously allocated to him.

I am satisfied in the circumstances of this case that the respondents knew of the arbitrator is award and the registration of the arbitral award as an order of Court. The respondents actively resisted adhering to the portion of the award relating to the granting of a residential stand. It appears to me that respondents are relying on technicalities in order not to adhere to the Court order confirming the arbitral award.

I also find that the Court order in HC 6011/19's first paragraph effectively and lawfully confirms the registration of the arbitral award, including the granting of a residential stand.

I say so because the Court has no power to cherry pick clauses of the arbitral award by virtue of ordering that the arbitral award was registered as an order of Court effectively encapsulates the full arbitral award.

The first and second respondent are responsible for the allocation of residential stands. They stand in a position practically and at law to accede or refuse to adhere to the Court Order. In this case they refused to do so and are in contempt of a Court Order.

I find in the circumstances that the applicant has proven his case and deserves the relief he seeks. Applicant seeks costs on a higher scale. I find that in light of the active non adherence to an Order of Court and the need to sound a warning that Court orders are there to be obeyed and complied with I am satisfied that an order of costs on a higher scale is justified.

I therefore order as follows:

1. The chamber application for contempt of court be and is hereby granted.
2. The respondents be and are hereby found in contempt of the court order granted by this Honourable Court on 7 August 2019 under HCH 6011/19.
3. The first and second respondents be and are hereby committed to Chikurubi Maximum for a period of six months all of which are suspended on the grounds that respondents shall immediately upon the grant of this order comply fully with the court order under HCH 6011/19 in awarding the applicant a stand the same size as with his previously allocated stand that is stand number NE 3061 Vengere Township Rusape.

4. The respondents shall pay costs of this application on a legal practitioner client scale jointly and severally the one paying the others to be absolved.

WAMAMBO J:……..

Matlaw,applicant's legal practitioners
Absolom and Shepherd Attorneys, respondent's legal practitioners